

Arranging Support and Services



AMENDMENT

In December 2024, Section 8, Out of Area Services was updated to clarify that Extra Care Housing is classified as specified accommodation.

[December 16, 2024](#)

1. Using this Procedure

This procedure should be used when a final personal budget has been agreed, Care and Support Plan (or Support Plan) has been signed off and services are to be arranged.

2. Commissioning and Brokerage Processes

The processes for commissioning or brokering care and support services can be found in the [Local Resources](#).

This includes the processes for domiciliary care, residential and nursing care, supported living, extra care, shared lives, respite etc.

3. Direct Payments

When the Care and Support/Support Plan has been signed off you should proceed to arrange the Direct Payment as set out in the plan.

Direct Payments should be arranged in line with local processes and requirements.

See the [Direct Payment Procedure](#) for further information.

4. Urgent or Interim Support

When agreed any urgent and interim support should be arranged using the relevant commissioning and brokerage processes. These can be found in the [Local Resources](#).

5. Providing Professional Support

Professional support is on-going support that you intend to personally provide to the person/carer that is outside the statutory requirement to arrange, monitor and review services.

Examples of professional support include:

- a. Long term planning and monitoring;
- b. Regular Wellbeing visits;
- c. Advocacy support;
- d. Counselling.

You should discuss and agree the need to provide professional support with your line manager, as often the support may be better provided by someone from within the person's/carer's informal networks or a person or organisation with specialist skills.

If you do provide professional support the existence of the support should be clearly visible from the person's/carer's records.

You must keep proportionate records of all professional support provided and ensure that the need for professional support is reviewed regularly through statutory review functions and supervision.

6. Arranging Alternative Services

Alternative services are services or methods of support in a Care and Support/Support Plan that meet an eligible need but cannot be directly commissioned by adult social care. They include things like:

- a. Housing;
- b. Welfare benefits;
- c. Health provision;
- d. Colleges and training centres;
- e. Specialist transport services;
- f. A community based group or church; and
- g. A charitable support group.

Under the Care Act the duty to meet eligible needs is only discharged from the Local Authority when any alternative services to meet that need are in place. This means that you must be satisfied that:

- a. The person/carers (or their representative) will make appropriate and timely arrangements to meet eligible needs through the alternative services identified;
- b. The alternative services identified are available and can be provided in a timely way.

You must also consider any support that the person/carers may need to arrange the alternative service and whether the advocacy duty applies.

If you have any concerns that eligible needs may not be met by an alternative service in the time or manner intended you must take steps to:

- a. Monitor the situation;
- b. Plan and agree what action the Local Authority will take if the alternative service is not provided to ensure that its duty to meet eligible needs is met (this could be the provision of interim support during any periods of delay).

In some situations it may be appropriate and proportionate to support the person/carers to make arrangements to access the alternative service in order to be satisfied that the service is in place and meeting needs as set out in the Care and Support/Support Plan. You can support the

person/carer to arrange the service yourself or you could ask another person (such an advocate or family member) to do this. If a person with care and support needs is already in receipt of paid support from an agency they may also be able to assist.

Any on-going need for support to access an alternative service on a regular basis should have been identified as part of the Care and Support planning process (for example if support is required each week to arrange specialist transport) and appropriate long term arrangements should be in place. If this is not the case you must explore methods for meeting this need with the person/carer (or their representative) from a strengths based approach, and make best use of the services and support already available in the Care and Support /Support Plan (for example the task could be added to the care plan of a domiciliary care agency).

If there is no appropriate and proportionate way to meet the need from within the current Care and Support /Support Plan a review may be required.

7. Self Funders

7.1 The duty to arrange/manage services

An individual who has been financially assessed as able to afford the full cost of the services to meet their eligible needs (self funding) can choose to arrange and manage those services without the involvement of the Local Authority unless:

- a. They lack capacity to do so; and
- b. There is no other appropriate person to make and manage the arrangements on their behalf.

If an individual does not wish to arrange/ manage the services they can request the Local Authority do so. In these circumstances the Local Authority has a duty to arrange/manage the services as requested with one exception: the service to be arranged is a residential or nursing placement.

In the case of residential or care home placements the Local Authority can decide whether or not to arrange or manage the services *unless*:

- a. The person lacks capacity; and
- b. There is no other appropriate person to arrange/ manage the placement on their behalf; in which case
- c. The Local Authority must arrange and manage the placement.

7.2 Arranging services only

Sometimes an individual may request support to arrange services, but feel able to manage them when they are in place.

If the Local Authority has agreed to (or has a duty to) arrange the services a Care and Support Planning process is not required and your role may involve things like:

- a. Facilitating communication between the individual and a service provider;
- b. Communicating with a service provider on the individual's behalf; and
- c. Supporting the individual to complete any paperwork required to arrange the service.

A record of the support provided in arranging the service should be made in the individual's electronic file.

When the service is arranged you must explain to the individual what steps they should take if:

- a. They feel unable to manage their service in the future; or
- b. They require further support from the Local Authority to arrange a different service; or
- c. Their financial circumstances change.

Charging to arrange services

The Local Authority is legally entitled to charge an administration fee for making arrangements for self funders when:

- a. Asked to do so by the individual; and
- b. The individual has capacity to make the request; and
- c. The services are not care home provision.

7.3 Arranging and managing services

If an individual requests the Local Authority both arranges and manages their services, and the Local Authority agrees to do so (or has a duty to do so) those services must be arranged and managed as per any other service.

This means a Care and Support Plan must be developed and reviewed.

If at any time the individual becomes unhappy or concerned about the manner in which the Local Authority is managing their services you should explain to them the option to manage the service independently still exists, so long as:

- a. They continue to be self funding; and
- b. There is no legal obligation for the Local Authority to manage the service.

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8. Out of Area Services

Out of area services are those arranged by one Local Authority area but provided in another.

Out of area services are normally arranged when there are no appropriate services available locally. They can also be arranged if the out of area service is deemed crucial to the person's Wellbeing.

Out of area services can be provided on a permanent or temporary basis, depending on the person's specific circumstances and needs.

Temporary out of area services

Temporary out of area services are those provided for a short period of time. Examples of when temporary out of area services may be needed

include:

- a. The person with care and support needs is a University student that spends term time only in another Local Authority area;
- b. The person with care and support needs spends regular time with other family members that live in a different area;
- c. The person with care and support needs has respite but the only suitable respite placement is in another Local Authority area.

If you know that a person with eligible needs (or other needs that the Local Authority has agreed to meet) spends time in another area, arrangements to meet those needs whilst they are away should be included in the Care and Support Plan.

If urgent needs arise outside of those anticipated or planned for, the Local Authority area where the person is visiting or staying temporarily can use powers in the Care Act to meet those needs.

For further information about these powers, see: [Ordinary Residence Procedure](#).

The impact on ordinary residence

The following is brief guidance to the possible impact on ordinary residence when an out of area service is arranged.

Also see [Ordinary Residence Procedure](#).

Temporary services

Providing any temporary service in another area when the person has no intention of staying there permanently has no impact on ordinary residence status.

Permanent residential care, nursing care, supported living or shared lives

Residential care, nursing care, supported living (including Extra Care) and shared lives are all specified accommodation under Section 39 of the Care Act 2014. This means that, if the Local Authority places anyone into one of these types of accommodation, their ordinary residence does not change.

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